



POLICE DEPARTMENT

December 20, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202204273 (Incident Date: June 23, 2022) regarding Police Officer Gregory Gromling, Tax No. 956704 (DADS No. 2023-29289)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202204273, pertaining to Police Officer Gregory Gromling. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that pursuing Charges and Specifications against Police Officer Gromling would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner has determined that Officer Gromling acted properly when he assisted in the complainant's arrest. After being handcuffed, the complainant refused to comply with the officers' instructions. Instead, as is evident in the available body-worn camera (BWC) footage, the arrested individual dropped his weight and refused to walk. The escorting officers then had to carry the individual to the police vehicle. The complainant was initially placed behind the driver's seat but was moved by Officer Gromling to the seat behind the passenger side. After that, Officer Gromling reached into the police vehicle and pulled the arrested individual across the rear bench seat until the individual was seated behind the front passenger seat. The individual was then buckled with a seatbelt and removed to the 103rd Precinct for arrest processing.

After reviewing the underlying facts and circumstances, including available BWC evidence and Police Officer Gromling's testimony during his CCRB hearing, it is clear that the force used by Police Officer Gromling was minimal and reasonable. Under the circumstances, such force is not improper.

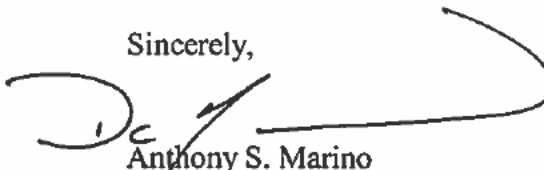
Regarding the second charge of discourtesy, Police Officer Gromling spoke discourteously during the incident, and will be issued a command discipline in connection with this misconduct.

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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline for the allegation that Police Officer Gromling spoke discourteously to an individual. Additionally, the Police Commissioner intends to impose no disciplinary action for the force allegation.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

December 22, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Gregory Gromling
Disciplinary Case No.: 2023-29289

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated December 20, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and impose no disciplinary action against Police Officer Gromling for the force allegation and direct the issuance of a Command Discipline Schedule A for the allegation that Police Officer Gromling spoke discourteously to § 87(2)(b). Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing CCRB’s request for Charges and Specifications and having analyzed the facts and circumstances in this matter, you have “determined that pursuing Charges and Specifications against Police Officer Gromling would be detrimental to the Police Department’s disciplinary process.” CCRB disagrees with this determination.

It is undisputed that § 87(2)(b) provided some resistance to the officers as the officers were attempting to place him under arrest and inside the patrol vehicle. While some force may have been reasonable under these circumstances, Police Officer Gromling’s action of pulling § 87(2)(b) into the patrol vehicle by the handcuffs was not “minimal and reasonable” as Deputy Chief Marino stated in his letter. The BWC footage captures Police Officer Gromling pulling § 87(2)(b) into the vehicle by the chain link of the handcuffs. Given that § 87(2)(b) was already in the patrol vehicle and that there were two officers on the other side of the vehicle assisting in placing § 87(2)(b) inside, pulling § 87(2)(b) by the handcuffs rather than his hand or upper body was unreasonable and improper. Based on the evidence and the totality of the circumstances, Police Officer Gromling was not justified in using force against § 87(2)(b) and should be held accountable for this misconduct.

Regarding the discourtesy charge, it is undisputed that Police Officer Gromling spoke discourteously to § 87(2)(b) as he was removing § 87(2)(b) from the patrol vehicle once they arrived outside of the stationhouse. The BWC footage clearly captures Police Officer Gromling telling § 87(2)(b) to “get out of the fuckin car.” Although § 87(2)(b) had been noncompliant with the officers before, at the time Police Officer Gromling makes this discourteous statement, § 87(2)(b) was in handcuffs, outside of the stationhouse, and outnumbered by members of service. § 87(2)(b) posed no imminent threat nor was he causing a highly stressful situation to justify Police Officer Gromling’s usage of such discourteous language. Based on the evidence and the totality of the circumstances, Police Officer Gromling was not justified in using profanity with § 87(2)(b) and should be held accountable for this misconduct.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Police Officer Gromling in this matter.

Respectfully submitted,


Jonathan Darche

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



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New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 22, 2023

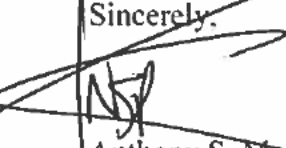
Re: CCRB Case No. 202204273 (Incident Date: June 23, 2022) regarding Police Officer Gregory Gromling, Tax No. 956704 (DADS No. 2023-29289)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated December 22, 2023, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Gregory Gromling, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Gromling for the reasons expressed in my December 20, 2023 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Gromling be issued a Schedule "A" Command Discipline for the substantiated discourtesy allegation and receive no disciplinary action for the force allegation.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office